

attendance at deposition.

The Court also notes that counsel has since substituted in for Defendant and the Court encourages the parties to meet and confer regarding the scheduling of the deposition without further delay. The Court will further address the status of the proceedings at the scheduled March 20, 2026 hearing date.

Disposition

The Court finds and rules as follows:

1. The Motion for Protective Order is DENIED.
2. Defendant shall pay monetary sanctions to plaintiffs in the amount of **\$1,200.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by plaintiffs as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court on the motion, including the declarations of the parties and their attorneys. **The Monetary Sanctions shall be paid by Defendant within thirty (30) calendar days of notice of entry of this order.**
3. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MENDIETA, ALLAN S.
TENTATIVE RULING:

Before the Court is a demurrer by defendant Allan Mendieta to plaintiffs' punitive damage allegations and prayer in the operative first amended complaint. Also set for hearing concurrently is a motion to strike the punitive damages allegations and prayer for punitive damages. For the reasons set forth below, the hearing on the demurrer and motion to strike shall be **CONTINUED to 9:00 a.m. on April 13, 2026** for the parties to conduct the statutory meet and confer, as set forth below. The parties shall conduct a Code-compliant meet and confer **by March 23, 2026**, and counsel for defendant shall file a supplemental declaration **by April 1, 2026** attesting to the completion of the meet and confer.

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged in person, by videoconference, or by telephone at least five days prior to the filing deadline before filing the demurrer and to file a declaration attesting to the parties' compliance with the requirement. (Code Civ. Proc. § 430.41(a) and (b).) Code of Civil Procedure section 435.5(a) contains similar provisions governing the parties' obligation to meet and confer prior to filing a motion to strike. (Code Civ. Proc. § 435.5(a).)

In support of the demurrer and motion to strike, defendant filed a declaration of counsel, Mr. Leary, which does not attest that the parties met and conferred in any manner prior to defendant filing the demurrer and motion to strike. The continuance of the hearing will allow the parties to conduct the meet and confer they failed to hold or were unable to hold in accordance with Code of Civil Procedure sections 430.41(a) and 435.5(a).

4. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: MENDIETA, ALLAN S.
TENTATIVE RULING:

See Line 3 above.

5. 9:00 AM CASE NUMBER: C25-00012
CASE NAME: SURGRIFF PROPERTIES LLC VS. CLARITA GRIFFIN
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES,**
SPECIAL INTERROGATORIES, REQUESTS FOR PRODUCTION, AND REQUESTS FOR ADMISSION, SET
ONE
FILED BY:
TENTATIVE RULING:

On July 21, 2025, plaintiff Surgriff Properties LLC ("Plaintiff") filed a motion to compel further responses to certain discovery requests propounded by Plaintiff to defendant Clarita Griffin ("Defendant") (collectively, the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on November 3, 2025.

Background

The Motion to Compel Further Responses relates to four separate discovery requests. Plaintiff served Defendant with (1) a Form Interrogatories, Set One, (2) Special Interrogatories, Set One, (3) Requests for Production, Set One, and (4) Requests for Admission, Set One. See Declaration of Jason Horst filed July 21, 2025 ("Horst Decl."), ¶13 and **Exhibits 1-4** thereto. Collectively, these requests are referred to herein as the "Discovery Requests."

No responses were received before the deadline. Horst Decl., ¶15. Despite meet and confer efforts, no responses were received before Plaintiff filed an earlier motion to compel on May 15, 2025.

Responses were finally served on June 3, 2025. Horst Decl., ¶15.

The earlier motion to compel was denied as moot given that responses had been served in the interim. See Order entered September 2, 2025.

However, this motion remained pending based on the contention that Defendant's responses were inadequate.

At the hearing on the Motion to Compel Further Responses on November 4, 2025,* the Court ordered the parties to meet and confer and file a Joint Statement no longer than 10 pages by December 1, 2025 (the "Joint Statement") and continued the hearing to December 15, 2026.

At the Case Management Conference (CMC) on November 19, 2025, the Motion to Compel Further Responses was continued from December 15, 2025 to March 9, 2026. The Court was informed that the parties had made progress towards settlement and the parties agreed to continue the discovery motion. See Minute Order dated November 19, 2026.

A Reply was filed on March 2, 2026. Among other things, plaintiff observes that no settlement has yet